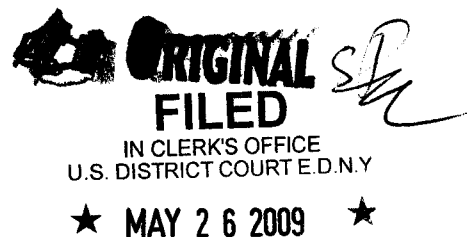


UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK



----- X
NICOLE MILANO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JAMES
RIVERA, shield # 12095, POLICE OFFICERS JOHN
DOES 1-7,

Defendants.

COMPLAINT BROOKLYN OFFICE

09 2204
Jury Trial Demanded

AMON, J.

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PRELIMINARY STATEMENT

J. ORENSTEIN, M.J.

1. This is an action brought pursuant to 42 U.S.C. § 1983 alleging civil rights violations by the City of New York and New York City Police Officers. Plaintiff alleges that, on January 23, 2009, NYPD officers of the Brooklyn North Narcotics Division arrested her without cause, used excessive force on her, damaged and stole her property, and presented false evidence against her in violation of the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide her claims brought under New York state law. A notice of claim was duly filed with the City of New York within 30 days after the arrest of plaintiff, more

than 30 days have elapsed since such filing and the City has not made an offer to settle plaintiff's state law claims.

4. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

PARTIES

5. Plaintiff is a resident of the State of New York, County of Kings.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. Police Officers James Rivera and John Does 1-7 are members of the NYPD's Brooklyn North Narcotics Division. These officers were acting under color of state law and in their capacities as NYPD officers at all relevant times herein. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The officers are sued in their individual capacities.

STATEMENT OF FACTS

8. Plaintiff works at Lulove Uniforms, Inc. selling nursing uniforms. The arrest at issue in this lawsuit is plaintiff's first and only arrest. The present case is plaintiff's first lawsuit.

9. On January 23, 2009, at approximately 5:30 a.m., plaintiff and her boyfriend Juan Fernandez were sleeping in the bedroom of Fernandez's apartment, number 6B, of 193 Albany Avenue, Brooklyn, New York.

10. At the above time and place, approximately eight police officers of the Brooklyn North Narcotics Division, including Officer James Rivera, broke down the door to the apartment and entered the bedroom where plaintiff and Fernandez were sleeping.

11. Although the police did not show it to plaintiff or Fernandez, the officers had a warrant that was issued on January 16, 2009, authorizing them to search the premises.

12. An unnamed Hispanic male was the target of the warrant.

13. Plaintiff was not mentioned in the warrant.

14. After the entering the bedroom, the officers seized Fernandez and plaintiff.

15. One of the officers, possibly Rivera, handcuffed plaintiff excessively tight, causing plaintiff's wrists to bleed and her fingers to become numb.

16. The officer then brought plaintiff, who was wearing a tank top and shorts, into the hallway.

17. Officers searched plaintiff in the hallway.

18. The officers did not find anything illegal on plaintiff.

19. While plaintiff was held in the hallway, the officers searched the apartment.

20. During the search, the officers stole plaintiff's diamond ring, worth \$250, and her diamond earrings, worth \$350.

21. The officers also destroyed claimant's Dell computer and printer, worth approximately \$1,000.

22. The officers did not find anything illegal in plain view in the apartment.

23. Although the officers did not find anything illegal in plain view, and had no evidence linking plaintiff to any drugs that may have been found in the apartment, they arrested plaintiff and charged her with possession of heroin and crack cocaine.

24. Plaintiff had no knowledge that Juan Fernandez may have hid drugs in the apartment.

25. Plaintiff asked the officers if she could put on clothes before she was taken to the precinct.

26. The officers said no.

27. One officer, possibly Rivera, told plaintiff that if she did not shut up, he would “make her shut up.”

28. Officers took plaintiff to the 77th Precinct.

29. While plaintiff was incarcerated in the precinct, Officer Rivera, in accordance with a conspiracy with the other arresting officers, prepared police reports which falsely stated that plaintiff was found in possession of illegal narcotics.

30. On January 24, 2009, at approximately 2:00 a.m., officers took plaintiff to Brooklyn Central Booking.

31. Plaintiff was incarcerated under unconstitutional conditions in Brooklyn Central Booking.

32. The cells in which plaintiff was incarcerated were severely overcrowded, filled with garbage and human excrement, and infested with roaches.

33. The cells in central booking lacked clean and adequate toilets.

34. Because there was no place for plaintiff to sit or sleep, plaintiff stood or sat on the floor during her entire incarceration in Brooklyn Central Booking.

35. While plaintiff was confined in Brooklyn Central Booking, Officer Rivera, in accordance with a conspiracy with the other arresting officers, misrepresented to the District Attorney’s Office that plaintiff was found in possession of illegal narcotics.

36. On January 24, 2009, at approximately 1:00 p.m., plaintiff was arraigned in Criminal Court, Kings County.

37. Plaintiff was released on her own recognizance and ordered to return to court on a specified date.

38. On April 2, 2009, the criminal charges filed against plaintiff were adjourned in contemplation of dismissal.

39. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered a loss of liberty, emotional distress, mental anguish, fear, anxiety, humiliation, and damage to reputation. Plaintiff also suffered pain and bruising from the excessively tight handcuffs. Moreover, plaintiff's property was stolen or damaged as described above.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
POLICE OFFICER JAMES RIVERA AND
POLICE OFFICERS JOHN DOES 1-7**

40. Plaintiff repeats the foregoing allegations.

41. The conduct of Police Officer James Rivers and Police Officers John Does 1-7, as described herein, amounted to false arrest, excessive force and fabrication of evidence in violation of 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

42. Plaintiff repeats the foregoing allegations.

43. The City of New York, through a police, practice and custom, directly caused the constitutional violations suffered by plaintiff.

44. Upon information and belief, the City of New York, at all relevant times, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations that the officers involved in this case are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

45. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action.

46. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them.

47. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

48. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S STATE LAW CLAIMS
AGAINST POLICE OFFICER JAMES
RIVERA AND POLICE OFFICERS JOHN
DOES 1-7**

49. Plaintiff repeats the foregoing allegations.

50. The conduct of Police Officer James Rivera and Police Officers John Does 1-7, as described herein, amounted to false arrest, assault, battery, theft, conversion, and vandalism in violation of New York state law.

**PLAINTIFF'S STATE LAW CLAIMS
AGAINST THE CITY OF NEW YORK**

51. Plaintiff repeats the foregoing allegations.

52. Because Police Officers James Rivera and John Does 1-7 were acting within the scope of their employment as members of the NYPD during the incident in question, the City of New York is vicariously liable under state law for false arrest, assault, battery, theft, conversion, and vandalism.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as this Court may deem just and proper.

DATED: May 24, 2009
Brooklyn, New York



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